

		are supported by the detailed receipts and appear necessary and reasonably incurred. The motion is thus DENIED as to the foregoing costs. As to the claimed costs for expert witness fees, expert witness fees not ordered by the court are expressly disallowed under Code of Civil Procedure section 1033.5, subdivision (b)(1). Defendant cites Code of Civil Procedure section 1033.5(a)(7) and 1033.5(a)(8) to argue the costs are allowable, but these sections involve ordinary witness fees and fees of expert witnesses ordered by the court. Defendant's memorandum of costs shows the \$2,855 charge is for expert fees, not ordinary witness fees. (See Memorandum of Costs Worksheet at ¶ 8b.) Defendant also submits no evidence showing the fees claimed are for expert fees ordered by the court. The motion is thus GRANTED as to the \$2,855 in expert witness fees. Accordingly, Defendant is awarded total costs in the sum of \$5,565.39 against Plaintiffs. Defendant shall give notice.
305	<i>Maresch vs. Unis Company, Inc.</i>	The Motion to Vacate the Arbitration, etc., filed on 3/2/26 by Plaintiff Guy Maresch (Plaintiff) is GRANTED IN PART. On 2/6/25, an Order was entered, pursuant to stipulation, referring the matter to arbitration at JAMS, and staying this action pending completion of the arbitration. (ROA 48.) By this Motion, Plaintiff asks to vacate the 2/6/25 Order and lift the stay pursuant to Code of Civ. Proc. Section 1281.98, subdivision (a), as defendant Unis Company, Inc. (Defendant) failed to timely pay the fees/costs required to continue the

		arbitration proceeding at JAMS. Defendant concedes that this is so and does not object to the request to resume the action in this court. The request to vacate the 2/6/25 Order and lift the stay is therefore GRANTED. The Court sets a Case Management Conference for this action on 9/28/26 at 8:45am in Dept. C24. Plaintiff's request that a monetary sanction be imposed on Defendant, pursuant to Code of Civ. Proc. Section 1281.99, subdivision (a), is GRANTED IN PART. Although sanctions "shall" be imposed under the circumstances shown here, and the \$471.96 claimed for costs appears reasonable, the Court finds that only \$4,500 should be awarded for fees incurred on this motion. Sanctions in the amount of \$4,971.96 are therefore imposed on Defendant, to be paid to Plaintiff, through his counsel of record, within 30 days. As Plaintiff's request for additional non-monetary sanctions is not supported by evidence sufficient to warrant such relief, that request is DENIED. Plaintiff shall give notice.
307	<i>Executive 57, LLC vs. The Yacht Works Engineering By Jim Vidales, Inc.</i>	Before the court is a Motion for Summary Judgment, or in the Alternative, Summary Adjudication (Motion) filed by plaintiff/cross-defendant Executive 57, LLC (Plaintiff) as to Plaintiff's First Amended Complaint (FAC) and as to defendant/cross-complainant The Yacht Works, Engineering By Jim Vidales, Inc.'s (Defendant for this ruling) Second Amended Cross-Complaint (SACC). The Motion is GRANTED in part and DENIED in part. As an initial note, the court in its discretion will proceed with the merits despite some issues with Plaintiff's separate statement. (<i>Truong v. Glasser</i> (2009) 181 Cal. App. 4th 102, 118.) Furthermore,